

ORDER SHEET
LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

W.P. No. of 2026
Matloob Hussain **versus** Judge Family Court & 2 others

<i>Sr. No. of order/ Proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
--	--------------------------------------	---

09.04.2026	Mr. Muhammad Habib Ashraf, Advocate for the petitioner. Mr. Qamar Zaman Qureshi, Addl. Advocate General, Punjab, Malik Ali Raza Khokhar, Dr. Muhammad Azeem Raja, Syed Ali Allow-u-Din, Syed Imran Ehsan, Ch. Imtiazullah Warraich, Syed Muhammad Haider Kazmi, Sharyar Farhan Baig, Muhammad Abu Bakar Attiq Sheikh, Malik Muhammad Zareef and Shujaat Umar Pirzada, Advocates. Mr. Qamar Hanif Ramay, Assistant Attorney General for Pakistan.
-------------------	--

Objection Case/Diary No.47082/2026

The petitioner has filed the titled petition to challenge order dated 03.03.2026 passed by the learned Family Judge/Trial Court, Lahore whereby in a Family Suit filed by respondents No.2 and 3 (“**respondents**”), the right of the petitioner to submit written statement has been closed/struck off.

In the titled petition, the office has raised objection that certified copies of document at pages 17 to 21 attached with the titled petition be filed on the record.

2. Learned counsel for the petitioner states that petitioner’s right to file written statement has been struck off by the learned Trial Court through impugned order without providing sufficient opportunity and the copy of the proposed written statement to be filed before the learned Trial Court has been placed on record for perusal by this Court at the afore-referred pages, therefore, as the said proposed written statement has not yet been filed before the learned Trial Court, certified copies of the

same cannot be issued by the copying agency of the said court at this stage. Learned Counsel seeks permission of this Court to overrule the office objection in the given circumstances of the case.

3. The question that arises is whether the proposed written statement which has not been filed before the learned Trial Court could be made part of the record as annexure attached with the titled petition. The perusal of said proposed written statement shows that it is neither signed by the petitioner/defendant nor verified as per law and the copy attached with the titled petition on the afore-noted pages only bears the signature of the learned counsel on the last page of the same, which appears to have been done to show that said document is the written statement that was proposed to be filed before the learned Trial Court. Needless to mention here that said document was not filed before the learned Trial Court and till today it is merely a proposed documents which *prima facie* is an incomplete document and has not yet matured into a legal document and the petitioner still may modify the same if permission to file written statement is allowed at this stage; hence such a document could not be allowed to be attached as annexure to the titled petition as an undisputed document to which finality is attached. In this view of the matter as the said document is still a proposed document, if the petitioner still needs to place copy of the same on the record for perusal by this Court, the petitioner should file a separate application along with the titled petition seeking permission of the Court to file said document on the record and also make prayer that he be permitted to file said proposed written statement before the learned Trial Court, which application is required to be accompanied by another application for dispensing with production of certified

copy of the same. It is pertinent to mention here that at present, no useful purpose would be served by passing an order to place certified copy of the same on the record as such a copy cannot be issued at this stage. Needless to mention here that production of incomplete documents or documents providing incomplete information may cause prejudice to the rights of the parties. Reliance may be placed on Messrs Fateh Yarn (Pvt.) Ltd. Faisalabad versus Commissioner Inland Revenue Faisalabad and others (2021 SCMR 1133 = 2021 PTD 1392). Furthermore, an unsigned copy of the proposed written statement which was not yet a complete/legal document and could be amended at later stage cannot be treated as a document authenticity of which was beyond doubt and could not be allowed to be placed on record as an annexure attached to the instant petition. Reliance is placed on Akeel Ahmad versus Chairman, Punjab Public Service Commission, Lahore and others (PLD 2024 Lahore 228). Moreover, an incomplete document cannot be taken as a proof of what it purports to establish on the record as it could not be assumed that the said document was a validly executed complete document.

4. The petitioner in the given circumstances has two options available to him i.e. first, to remove the same (i.e. proposed written statement) from the record and second, if he still deems necessary to place the same on the record for perusal by this Court, he may file an application for seeking permission to do the needful (i.e. filing the same on record) alongwith application for dispensing with the production of certified copy of the same. It may be added here for convenience of the parties that in case the said document was a complete document, this Court could in its discretion allow the same to be attached with the file as an annexure without requiring

certified copy of the same provided the petitioner had filed an application for dispensing with the production of certified copy of the same.

5. In view of the above, the office objection is sustained accordingly.

(MUZAMIL AKHTAR SHABIR)
JUDGE

KMSubhani

Approved for reporting.